NEW MEXICO DNA EXPUNGEMENT AGENCY-REQUEST PREPARATION GUIDE

ROUTE: obligation:runtime-only:NM:dna-sample-profile-expungement
THIS IS AN AGENCY-APPLICATION PREPARATION GUIDE, NOT AN OFFICIAL FORM AND NOT A COURT FILING.

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STOP BEFORE APPLYING: STATUTORY TEXT AND RECEIVING OFFICE

The legal review behind this guide has not verified Section 29-16-10 at an official New Mexico source. Stop before applying until the statutory text has been checked at an official source and the receiving agency and request format are established. Ask a New Mexico attorney to resolve the statutory-text gap and the New Mexico Department of Public Safety to confirm the receiving agency and format.

WHO MUST RECEIVE A COPY OR NOTICE?

This preparation guide is not served on anyone and is not a court filing. The held sources do not establish a service or notice rule for the agency request. Before submitting a request, ask the New Mexico Department of Public Safety whether anyone besides the receiving agency must receive a copy or notice and how.

WHAT THIS ROUTE IS

This is an administrative written request to an agency, not a court filing, and it does not use the Rule 1-077.1 NMRA form set. The request seeks expungement of the participant's DNA sample and DNA records from the state DNA identification system; the committed record says the administrative center must ensure corresponding expungement from CODIS.
The recorded qualifying branches are a reversed conviction, or an arrest ending in dismissal, nolle prosequi, successful preprosecution diversion, conditional discharge, misdemeanor conviction, acquittal, or no felony charge within one year. That one-year condition is a substantive lookback only for the no-felony-charge branch, not a universal wait.

DOCUMENTS AND STOP CONDITIONS

The recorded request must be written and supported by certified documentation or a sworn affirmation. Obtain the certified disposition for the applicable branch; on the no-felony-charge branch the record calls for a sworn affidavit that no felony charges were filed within one year.
Relief is unavailable where the person has a prior felony conviction or a pending felony charge for which DNA collection is authorized. Stop and obtain New Mexico counsel if either may apply.

No held source identifies the administrative center, receiving unit, destination, accepted request format, or fee. Confirm every one with the New Mexico Department of Public Safety before sending anything; this guide deliberately supplies no address.

FACTS YOU MUST CONFIRM BEFORE ACTING

Qualifying Section 29-16-10 branch:
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Check with: the certified court disposition and a New Mexico attorney if classification is uncertain

Case court, county, case number, and disposition date:
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Check with: the clerk of the court that disposed of the case

Arresting agency and arrest date tied to the DNA collection:
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Check with: the arresting agency and the participant's criminal-history record

Certified disposition or sworn no-felony-charge affirmation:
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Check with: the court clerk and the confirmed administrative center

Confirmed administrative center, destination, and accepted request format:
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Check with: the New Mexico Department of Public Safety

Prior-felony and pending-authorized-felony screen:
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Check with: the participant's complete criminal-history records and New Mexico counsel

PROTECTED ITEMS

Do not sign or date this guide. Sign and date only the agency's own request or application, in the manner that agency directs.
No court, clerk, prosecutor, agency, notary, or hearing-officer field is completed anywhere in this guide.